

Sachin And Ors vs Krishna Kumari Nangia And Ors on 12 July, 2013

Author: Jayant Nath

Bench: Jayant Nath

\$~A-24

* IN THE HIGH COURT OF DELHI AT NEW DELHI

Reserved on : 03.07.2013

Pronounced on : 12.07.2013

+ CS(05) 1325/2011

SACHIN AND ORS

Through

..... Plaintiff

Mr.Samrat Nigam and Ms.Ankita
Mahajan, Advs.

versus

KRISHNA KUMARI NANGIA AND ORS

Through Mr.Sanjiv Bahl and Mr.Eklavya Bahl,
Advs.

..... Defendant

CORAM:

HON'BLE MR. JUSTICE JAYANT NATH

JUDGMENT (JAYANT NATH, J.)

1. The present Suit has been filed by the plaintiffs seeking a decree of partition by metes and bounds and possession of property AB-14, Safdarjung Enclave, Community Centre, New Delhi. The plaintiffs also seek a decree of declaration declaring that the plaintiffs are the owners of the respective shares in respect of the said property and a decree for rendition of accounts in favour of the plaintiffs and against the defendants and other reliefs.

2. The brief facts on the basis of which the present Suit is filed are that plaintiffs 1 to 3 submit that their mother Smt.Raj Kumari married Shri Pran Nath Nangia on 12.12.1963 at Delhi according to Hindu Rites and Customs. It is stated that out of the said wedlock the plaintiffs were respectively born. It is further submitted that the property AB-14, Safdarjung Enclave, Community Centre, New Delhi (hereinafter referred to as the „Suit property) was purchased by their father late Shri Pran Nath Nangia during his lifetime and he constructed various shops and rooms from his own funds on the property. Shri Pran Nath Nangia died on 22nd January, 1985. The plaint is silent about the relationship between the plaintiffs and the defendants. It is, however, claimed that the plaintiffs have requested the defendants a number of times to partition of the suit property but to no effect. Hence the present suit is filed.

3. The defendants have filed a written statement. The defendants have submitted that late Shri Pran Nath Nangia is the husband of defendant No.1 Smt.Krishna Kumari Nangia and the said late Shri

Pran Nath Nangia and defendant No.1 got married on 20th January, 1949. The defendants No.2 to 4 are the daughters of late Shri Pran Nath Nangia and defendant No.1. It is stated that on the death of late Shri Pran Nath Nangia the defendants have inherited the rights to the suit property. It is stated that the said Smt.Raj Kumari mother of the plaintiffs is actually the wife of Shri Krishan Lal Batra. Smt. Raj Kumari is said to have also claimed that Late Shri Pran Nath Nangia had executed a Will in her favour though the Will is a forged and fabricated one. It is pointed out that said Smt.Raj Kumari mother of the plaintiffs filed a suit bearing No.429/1985 which was pending in the Court of Shri M.K.Gupta ,the then Sub-Judge First Class, where she has stated that there was a Will executed allegedly in her favour by Late Shri Pran Nath Nangia dated 4.3.1984. Nothing is stated above about the outcome of the said suit by the parties. It is further stated that in view of the conduct of the said Smt.Raj Kumari mother of the plaintiffs, defendants were forced to file an appropriate Suit seeking a declaration to the effect that the defendants are owner/landlord of the suit property and that Smt. Raj Kumari mother of the plaintiff has no right or interest in the suit property. Accordingly, Suit No.1550/1991 titled Mrs.Krishna Kumari Nangia versus Smt.Raj Kumari was filed before this Court. The Suit was decreed by the Court of Mr.Justice K.Ramamoorthy vide order dated 26.07.1995 and the defendants herein were declared as the exclusive owners of the suit property and Smt.Raj Kumari was held to have no right or interest in the suit property. Based on the said decree, it is stated that Delhi Development Authority executed a perpetual Lease Deed for the suit property dated 29.05.1997 in favour of the defendants rejecting the claim of Smt.Raj Kumari based on the forged and fabricated Will of Late Shri Pran Nath Nangia. Hence, it is stated that in view of the above facts the plaintiffs have no right, title or interest in the suit property. It is further submitted by the defendants that plaintiffs are not the children of Late Shri Pran Nath Nangia and as such have no right, title or interest in the property of Late Shri Pran Nath Nangia. It is reiterated that the plaintiffs are the children of Smt.Raj Kumari and her husband Shri Krishan Lal Batra and that both their parents are alive.

4. On the basis of the above averments issues were framed on 24th May, 2006 as follows:-

"1.Whether the plaintiff has not approached the court with clean hands and has suppressed various material facts as disclosed in the written statement? OPP.

2.Whether the plaintiff has got any right, title or interest in the suit property? Onus on parties.

3.Whether the suit has not been properly valued for the court fees and jurisdiction? OPD.

4.Whether the suit is barred by time? OPD

5.Whether Smt.Raj Kumar was legally wedded wife of Sh.Prn Nath Nangia? Onus on parties.

6.Whether the plaintiff is entitled to a decree of partition? OPP

7. Whether the plaintiff is entitled to a decree of declaration? OPP

8. Whether the plaintiff is entitled to a decree of rendition of accounts? OPP

9. Whether the plaintiff is entitled to a decree of permanent injunction? OPP

10. Relief."

A perusal of the issues would show that some of the onus have been wrongly mentioned. By consent of the parties the onus has been corrected as follows:-

"1. Whether the plaintiff has not approached the court with clean hands and has suppressed various material facts as disclosed in the written statement? OPD

2. Whether the plaintiff has got any right, title or interest in the suit property? OPP.

3. Whether the suit has not been properly valued for the court fees and jurisdiction? OPD.

4. Whether the suit is barred by time? OPD

5. Whether Smt. Raj Kumar was legally wedded wife of Sh. Pran Nath Nangia? OPP

6. Whether the plaintiff is entitled to a decree of partition? OPP

7. Whether the plaintiff is entitled to a decree of declaration? OPP

8. Whether the plaintiff is entitled to a decree of rendition of accounts? OPP

9. Whether the plaintiff is entitled to a decree of permanent injunction? OPP

10. Relief."

5. I will now first deal with Issue Nos. 2 and 5 which are the most crucial issues namely:

"2. Whether the plaintiff has got any right, title or interest in the suit property? OPP.

5. Whether Smt. Raj Kumar was legally wedded wife of Sh. Pran Nath Nangia? OPP"

6. It is the contention of the plaintiff that their mother Smt. Raj Kumari married Sh. Pran Nath Nangia on 12.12.1963 in Delhi according to Hindu rites and customs. PW1, namely, plaintiff No.1 has said so in his affidavit. He also relied upon kundali-milan of his father and mother which has been exhibited as PW1/A. He has stated that out of the wedlock, plaintiff Nos. 1 to 3 were born. He relies upon his birth certificate issued by the Registrar of Birth and Death, Civil Lines Zone,

Municipal Corporation, Delhi which has been marked as Ex. PW 1/B which states that he is the son of late Shri Pran Nath Nangia. (Plaintiff No.1's name is not mentioned in the said Birth Certificate.) He also relies upon the degree certificate of B.Sc. for the year 1987 issued by Delhi University for his elder sister Ms. Neelam which is Mark A and the school certificate/Board certificate of his elder sister Ms. Shallu which is Ex. PW1/1. It is stated in the said documents that the two sisters are the daughters of Late Shri Pran Nath Nangia. Documents Ex. PW1/A and 1/B have been exhibited, subject to objections of the counsel for the defendant about their being not tendered in accordance with the recognised mode of proof.

7. Apart from himself PW1 the plaintiff has also examined two witnesses namely PW3 Sh. Preetam Singh and PW4 Sh. Deepak Sharma, who were stated to be the neighbours of the plaintiffs' parents while they were staying in Roshanara Road. They have deposed that Sh. Pran Nath Nangia and Smt. Raj Kumari were living together as husband and wife.

8. The plaintiff has also led evidence of one Mr. J.P. Garg working as Assistant Secretary in CBSE Ajmer who has placed on record the copy of the certificate of CBSE Secondary School Examination along with mark sheet of Ms. Shallu.

9. The learned counsel for the plaintiffs submits that irrespective of whether he is able to prove the marriage ceremonies of his parents, in view of Section 16 of the Hindu Marriage Act, 1955, the plaintiff would still be entitled to a share in the suit property. Section 16 of the Hindu Marriage Act reads as under:

"16. Legitimacy of children of void and voidable marriages. - (1) Notwithstanding that marriage is null and void under section 11, any child of such marriage who would have been legitimate if the marriage had been valid, shall be legitimate, whether such child is born before or after the commencement of the Marriage Laws (Amendment) Act, 1976 (68 of 1976), and whether or not a decree of nullity is granted in respect of that marriage under this Act and whether or not the marriage is held to be void otherwise than on a petition under this Act."

10. The learned counsel for the plaintiff relies on Shree Bhagwan and Ors v. Suraj Bhan and Ors 2006 VIII AD (Del) 380 and Bharatha Matha and Anr v. R. Vijaya Renganathan and Ors AIR 2010 SC 2685, to contend that he need not prove the marriage ceremony of his parents and the mere fact that the plaintiffs are the children of late Shri Pran Nath Nangia, would itself in view of the provisions of Section 16 of the 1955 Act give rights to the plaintiffs in the suit property.

11. The defendants have denied the factum of the marriage of late Shri Pran Nath Nangia and Smt. Raj Kumari. The defendants have filed the evidence of only one witness i.e. of defendant No.1 (DW1). Defendant No.1 in her evidence by way of affidavit has made the aforementioned averment i.e. that Shri Pran Nath Nangia never married Smt. Raj Kumari. Defendant No.1 in her evidence also points out that she was married to Late Shri Pran Nath Nangia on 21.1.1949 and defendants No.2 to 4 are her daughters born from the wedlock of Shri Pran Nath Nangia. She alleges that after the death of Shri Pran Nath Nangia, the said Mr. Raj Kumari started alleging that she was married to

Shri Pran Nath Nangia before his death. It is also stated that Smt. Raj Kumari filed the suit bearing No.429/1985 which is pending in the court of Shri M.K.Gupta Sub-Judge, First Class, Delhi where it has been alleged that late Shri Pran Nath Nangia executed a Will dated 4.3.1984 in her favour. It is stated that defendant herein were not made a party to the Suit. No further details about the Suit have been mentioned. It is further stated by defendants that in view of the allegedly forged and fabricated Will dated 5.3.1984, propounded by Smt. Raj Kumari the defendants filed Suit No.1550/1991 titled Smt.Krishna Kumari Nangia and others versus Mrs. Raj Kumari before this Court which was decreed on 26.7.1995. Copy of the order has been marked as Ex.PW1/1. It is further stated that pursuant to the said decree a perpetual lease deed dated 25.5.1997 was executed by DDA in favour of the defendants which has been marked as Ex.DW1/2. It is contended that in view of the said orders and perpetual lease the defendants are the absolute owners of the suit property.

12. Learned counsel appearing for the defendant has also submitted that to get the benefit of Section 16 of the 1955 Act, the plaintiffs had to prove marriage of late Shri Pran Nath Nangia and Smt. Raj Kumari. It is contended that Section 16 applies only where a marriage is null and void under Section 11 or where a decree of nullity is granted in respect of that marriage under the Act. Hence in the absence of a marriage, the question of a marriage being null and void or a decree of nullity being granted to the marriage cannot and does not arise. For the above submissions, learned counsel for the defendant relies upon Mrs. Sudershan Karir and Ors v. The State and Ors AIR 1988 Del 368 and Revanasiddappa and Anr v. Mallikarjun and Ors (2011) 11 SCC 1.

13. It is also the contention of the learned counsel for the defendant that the aforesaid judgment of Bharchha matha (supra), of the Supreme Court would apply squarely to the facts of the present case. He has pointed out that in the cross examination of PW 1/plaintiff No.1, admits that his mother Smt. Raj Kumari married to Sh. Krishan Lal Batra. He submits that there is no denial of the fact that the mother of the plaintiff Smt. Raj Kumari and the said Krishan Lal Batra are alive. He further submits that the plaintiff has failed to bring on record any evidence to show that Smt. Raj Kumari and Sh. Krishan Lal Batra did not have access to each other at any point of time when the plaintiffs were conceived/born. He hence submits that in view of the interpretation of Section 112 of the Indian Evidence Act, 1872 as stated in the above judgment of the Hon ble Supreme Court a presumption would arise that plaintiffs are the children of Smt. Raj Kumari and Shri Krishan Lal Batra.

For the above propositions he also relies upon the following judgments:

- (i) Kundan Singh and Ors v. Hardan Singh AIR 1953 All. 501;
- (ii) G.R. Sane v D.S. Sonavane & Com & Ors AIR (33) 1946 Bom 110;
- (iii) C.A. Kalla Maistry v Kanniammaj & Ors AIR 1963 Mad 210;
- (iv) Shyam Lal @ Kuldeep v. Sanjeev Kumar & Ors AIR 2009 SC 3115;
- (v) Raghavan Pillai v. Gourikutty Amma and Ors AIR 1960 Ker. 119; Chiruthakutty v. Subramanian AIR 1987 Kr. 5

(vi)Perumal Nadar (dead) by LR v. Ponnuswami Nadar (minor) AIR 1971 SC 2352;

(vii)Shuja Uddin Ahmad v. Emperor AIR 1922 All 214 (1)

(viii)Dibakar Behera & Anr v. Padmabati Behera & Anr AIR 2008 Orrissa 92.

14. In my view, the plaintiffs have failed to prove that they have any right or title in the suit property or that Smt.Raj Kumari is the legally wedded wife of Shri Pran Nath Nangia.

15. The sum and substance of evidence led by the plaintiff to prove the factum of marriage of Smt.Raj Kumari with late Shri Pran Nath Nangia is only confined to one para in his affidavit by way of evidence. The said para, namely, para 2 of the Affidavit of Shri Sachin PW 1 reads as follows:-

"2. I say that my mother Smt.Raj Kumai, was married with Sh.Pran Nath Nangia s/o Late Sh.Ghanshyam Dass Nangia, on 12.12.1963 at Delhi, according to Hindu Rites and Customs, in the presence of respectable persons of both the families. The original Kundli Milan of my mother and father is exhibited as Ex.PW-1/A. Out of the said wedlock, myself and my elder sisters Mrs.Neelam and Mrs.Shallu respectively were born. The birth certificate of myself issued by Registrar Birth and Death, Civil Line Zone, Municipal Corporation of Delhi, is exhibited as Ex.PW-1/B. The Degree Certificate of B.Sc. passed in the year 1987 issued by Delhi University, Delhi of my elder sister Mrs.Neelam is exhibited as Ex.PW-1/C and School Certificate/Degree Certificate of my elder sister Smt.Shallu, is exhibited as Ex.PW-1/D."

16. Apart from the above averments there are the statements of PW 3 and 4 the alleged neighbours who have said that Smt.Raj Kumari and late Shri Pran Nath Nangia stayed together. There is no other evidence on record to show the marriage of Smt.Raj Kumari with late Shri Pran Nath Nangia. The affidavit of PW1, plaintiff is devoid of details. No details or evidence is given as to where the marriage ceremony allegedly took place, who all were present in the marriage ceremony. It is also not explained as to under what circumstances the marriage took place and as to after the said marriage how long the parties resided together and if so, where did the parties reside together. There is no averment or evidence to show that late Shri Pran Nath Nangia took care of the household expenses of Smt.Raj Kumari and the plaintiffs including the schooling and other expenses. There is also no explanation given as to what was the relationship between said late Shri Pran Nath Nangia and defendant No.1 before 1963 or after 1963. One also cannot lose sight of the fact that late Shri Pran Nath Nangia died in 1984. The suit has been filed in 2005 twenty one years after the death of late Shri Pran Nath Nangia. No explanation for the delay are given in the plaint or the evidence of the plaintiff. There is no attempt to explain about what happened in the suit filed by Smt.Raj Kumari based on a Will of late Shri Pran Nath Nangia. Clearly basic details of evidence to show that Shri Pran Nath Nangia and Smt.Raj Kumari were ever married are missing. It is no doubt true that the defendant No.1 has in her evidence also given absolutely no details about the life of late Shri Pran Nath Nangia. Defendant No.1 also does not aver whether Shri Pran Nath Nangia stayed with her from 1949 till his death. However, it was for the plaintiff to establish their case which they have completely failed.

17. As pointed out by the Madhya Pradesh High Court in the case of Ramkali and Anr. Vs. Mahila Shyamwati & Ors., AIR 2000 MP 288, a presumption in favour of marriage does not arise merely on the ground of cohabitation but it must be cohabitation with „habit and „repute. The condition of „habit and „repute must be satisfied beyond doubt. The court further held that a mere statement that a person is or is not married is not admissible under Section 50 of the evidence Act. What the court wants under Section 50 of the Act is opinion expressed by conduct of any person who as a member of the family or otherwise has special means of knowledge of the relationship.

In fact, a reference may be had to illustration (a) to Section 50 of The Evidence Act 1872 which reads as follows:-

"50.

(a) The question is, whether A and B were married.

The fact that they were usually received and treated by their friends as husband and wife, is relevant."

The plaintiffs here have failed to prove cohabitation between Sh. Pran Nath Nagia and Smt. Raj Kumari. PW1 does not state that his parents co-habitated together. There is of course the statement of PW3 and PW4. But merely stating that Sh. Pran Nath Nagia and Smt. Raj Kumari stayed together as husband and wife does not prove the factum of marriage between Sh. Pran Nath Nagia and Smt. Raj Kumari. PW3 and PW4 are not related to Shri Pran Nath Nangia and Smt. Raj Kumari. They also do not have special means of knowledge.

18. Similarly reliance cannot be placed upon the documents filed by the plaintiff namely birth certificate being PW1/B and Board Certificate being PW1/1 or Kundali Milan PW1/A. As far as the kundali Milan and birth certificates are concerned the best person to prove the said documents have not been summoned. Further, the documents are self-generated documents in the sense that it has not been shown that Sh. Pran Nath Nangia signed any application which resulted in these documents being issued.

19. The plaintiff has also filed some photographs which were allowed to be placed on record as secondary evidence on 06.03.2007 by the order of learned Addl. District Judge. There is no reference to these photographs in the evidence filed by PW1/plaintiff nor have any submissions been made regarding the effect of these photographs.

20. One also cannot help noting that the best person to lead evidence in this case was Smt. Raj Kumari herself. She has not entered the witness box. PW3 and PW4 have deposed that the said Smt. Raj Kumari is not feeling well and is going under mental depression. However in their cross examination both stated that they have come to depose at the instance of Smt. Raj Kumari and that the said Smt. Raj Kumari had requested them to come and depose in the matter. Plaintiffs have also failed to place on record any medical record to show that Smt. Raj Kumari was mentally unwell. It is obvious that she was the best person to prove the factum of her marriage with Late Shri Pran Nath

Nangia.

21. Hence, I hold that there is no proof to show that Smt.Raj Kumari was the legally wedded wife of late Shri Pran Nath Nangia or that any marriage ceremony took place.

22. I have also to reject the submission made by the learned counsel for the plaintiff that irrespective of whether the factum of marriage between late Shri Pran Nath Nangia and Smt.Raj Kumari is proved, the plaintiff would still be entitled to a claim in the suit property in view of section 16(1) of the 1955 Act.

23. In my view, the judgments cited by the learned counsel for the defendant apply to the facts of this case. In Sudershan Karir (supra) a Single Judge of this Court held that Section 16 (1) of the 1955 Act applies only in a case in which a marriage is in fact proved to have taken place between two persons, which may otherwise be null and void as per Section

11. Similar are the observations of the Hon ble Supreme Court in the case of Revanasiddappa (supra). The Hon ble Supreme Court in para 37 of the judgment held as follows:

"37. However, one thing must be made clear that benefit given under the amended Section 16 is available only in cases where there is a marriage but such marriage is void or voidable in view of the provisions of the Act."

24. In contrast, the judgments relied upon by the learned counsel for the plaintiff do not support the contention raised by him, namely, that proving of marriage ceremony of parents is not necessary for application of Section 16 of the 1955 Act. In Shree Bhagwan (supra), the judgment of this Court has been passed on the facts of that case. In that case, the plaintiffs themselves pleaded that the father had two wives though in certain parts of the plaint they had referred to the step mother as father's keep. Hence the court accepted the fact that the father of the plaintiff had two wives.

25. Similarly, reliance of the learned counsel for the plaintiff on the judgment of the Supreme Court in the case of Bharatha Matha (supra) is also misconceived. In that case, the Hon ble Supreme Court has, relying on an earlier judgment of the Supreme Court in the case of Lata Singh v. State of U.P. and Anr AIR 2006 SC 2522, reiterated that living in relationship is permissible only in unmarried major persons of heterogeneous sex. In case one of the said persons is married, the man may be guilty of offence of adultery and it would amount to an offence under Section 497 IPC.

26. Reference in the above context may also be had to the judgment of Madhya Pradesh High Court in Ramkali and Anr. Vs. Mahila Shyamwati (supra), where the Madhya Pradesh High Court held as follows:-

"In the aforesaid circumstances, when there is no proof of solemnisation of marriage and there is further no proof that there was a de jure marriage or even a de facto marriage where during long cohabitation as husband and wife with habit and repute a child is born, there can be no occasion whatsoever for making available the

statutory presumption envisaged under Section 16 of the Hindu Marriage Act, 1955 securing the status of a legitimate child in favour of such a child born out of a union which was either void ab initio or declared to be so under a decree passed under Section 11 or 12 of the Hindu Marriage Act, 1955."

Same view has been expressed by the Orissa High Court in the case of Laxmi Sahoo and Anr. Vs. Chaturbhuj Sahoo and Anr. reported in AIR 2003 Orissa 8 where it was held that it is only where marriage between the parties is proved, even though it is declared invalid, the child born through their union could claim right under Section 16 of the Hindu Marriage Act. In the book by Kumud Desai "Indian Law of Marriage and Divorce" it has, while writing on Section 16 of the Hindu Marriage Act, been noted as follows:-

"Children are entitled to the benefit under Section 16 only in case the marriage of the mother and the father was void or voidable, where there is no marriage, children have no right." (page 228, 7th Ed.)

27. In view of my finding above that the plaintiffs have failed to prove the marriage of Shri Pran Nath Nangia and Smt. Raj Kumari, the benefit of Section 16(1) of the Hindu Marriage Act will not be available to the plaintiff. In view of the above judgments it is clear that section 16(1) applies only where the marriage ceremony between the parties is proved but is null and void under Section 11 of the said Act or where a decree of nullity has been granted in respect of that marriage. Where there is no marriage and where it is an admitted position that one of the parties is still married, Section 16(1) of the 1955 Act would have no application.

28. Another obstruction to the claim and contentions of the plaintiff is Section 112 of The Indian Evidence Act. One cannot lose sight of the fact that it is an admitted position of the plaintiff that their mother Smt. Raj Kumari married Shri Krishan Lal Batra. No details have been given by the plaintiff as to whether the said marriage subsists or not. It is also not denied that Shri Krishan Lal Batra was alive. Plaintiff No.1 in his cross says that he is not aware whether Shri Krishan Lal Batra is alive or not. There is substance in the contention of the learned counsel for the defendant that Section 112 of the Evidence Act would hit the claim of the plaintiffs. In Bharat Matha (supra) the Hon ble Supreme Court held that Section 112 of the Evidence Act provides for a presumption of a child being legitimate and such a presumption can only be displaced by strong preponderance of evidence and not merely by balance of probabilities. Similarly, in the case of Shyam Lal @ Kuldeep versus Sanjeev Kumar, AIR 2009 SC 3115 the Hon ble Supreme court held that once validity of a marriage is proved then there is a strong presumption about legitimacy of a child born during continuation of the valid marriage.

29. Similar position was upheld in the case of Perumal Nadar (supra). In para 12 of the said Judgment the Hon ble Supreme Court stated as follows:-

"12. Nor can we accept the contention that the plaintiff, Ponnuswami is an illegitimate child. If it be accepted that there was a valid marriage between Perumal and Annapazham and during the subsistence of the marriage the plaintiff was born, a

conclusive presumption arises that he was the son of Perumal, unless it be established that at the time when the plaintiff was conceived, Perumal had no access to Annapazham. There is evidence on the record that there were in 1957 some disputes between Annapazham and Perumal. Annapazham had lodged a complaint before the Magistrate's Court that Perumal had contracted marriage with one Bhagvathi. That complaint was dismissed and the order was confirmed by the High Court of Madras. Because of this complaint, the relations between the parties were strained and they were living apart. But it is still common ground that Perumal and Annapazham were living in the same village, and unless Perumal was able to establish absence of access the presumption raised by Section 112 of the Indian Evidence Act will not be displaced."

30. In view of section 112 of the Evidence Act it is clear that the submission of the plaintiff even otherwise cannot be accepted. Hence, I hold that the plaintiffs have no right, title or interest in the suit property.

31. Issues No.1 and 3 are reproduced as under:-

"1. Whether the plaintiff has not approached the court with clean hands and has suppressed various material facts as disclosed in the written statement? OPP.

3. Whether the suit has not been properly valued for the court fees and jurisdiction? OPD.

No submissions have been made by the defendants on the above two issues. Hence, both the issues are held in favour of the plaintiffs.

32. Issue No. 4.

"Whether the suit is barred by time? OPD"

Learned counsel for the defendant has argued that late Shri Pran Nath Nangia died in 1985 and the suit has been filed in 2005 and hence the Suit is barred by Limitation. On the other hand, learned counsel for the plaintiff submits that the suit is mainly for partition of the suit property and the decree of declaration sought is of no consequence whatsoever. There is merit in the submissions of the counsel for the plaintiffs. It is, hence, held that the Suit is not barred by limitation.

33. Regarding issue Nos. 6,7,8 and 9, in view of my order on Issue Nos.

2 and 5, no relief as sought by the plaintiff can be granted.

34. The Suit is dismissed. No order as to costs.

JAYANT NATH, J.

JULY 12, 2013 'raj'